

25STCV26972 25STCV26972

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Case Number: 25STCV26972 Hearing Date: July 28, 2026 Dept: 414

25STCV26972

Aaron Celious v. Ana Gabriela Lopez, et al.

Tuesday,

July 28, 2026

[TENTATIVE] ORDER GRANTING

PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE (9180)

[TENTATIVE] ORDER GRANTING

FURTHER RESPONSES TO REQUESTS FOR ADMISSION (0600)

I. BACKGROUND

This

action arises from Defendants' alleged violation of Plaintiff's property rights by operating an illegal vehicle storage business depriving the neighborhood of parking, illegal use of Plaintiff's right of way, and Defendant's conduct that allegedly amounted to a nuisance. Plaintiff alleges claims for nuisance, civil harassment, intentional infliction of emotional distress, negligence, defamation and false light.

Plaintiff

moves to compel Defendant, Ife Sherman ("Defendant") to provide further responses to requests for admission served on December 23, 2025. Plaintiff separately moves for an order compelling Defendant to provide further responses and production of documents in response to a request for production of documents,

set one, served on December 23, 2025. Plaintiff contends the supplemental responses served are evasive, incomplete, and are not Code compliant. Plaintiff met and conferred by letter on three occasions with Defendant who failed to provide further amended responses.

Plaintiff

timely served the motions on Defendant, who did not file an opposition.

II.

LEGAL STANDARDS

A motion to compel further responses to a document request is proper where the requesting party believes the statement of compliance is incomplete or a representation of inability to comply is inadequate, incomplete, or evasive and/or an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310.) The moving party is required to submit a declaration attesting that the parties met and conferred prior to filing the motion.

A party may move for an order compelling further responses to requests for admission if the requesting party deems that the responses are evasive or incomplete or an objection is without merit or too general. (Code Civ. Proc., § 2033.290.)

III.

DISCUSSION

A.

Request
for Production of Documents 1-23

Defendant responded “unknown” to requests 1-23. The response is not code-compliant. There are three possible responses to a request for production of documents:

Defendant must state either that she will comply with the particular demand in whole or in part, and state that “all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Code Civ. Proc., § 2031.220.)

If Defendant cannot comply

with the demand and produce the documents, Defendant "shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." (Code Civ. Proc., § 2031.230.)

B.

Requests

for admission 1-34

Defendant responded "unknown"

to all 34 requests. This response is not code-complaint.

The responses must:

"(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.

(2) Deny so much of the matter involved in the request as is untrue.

(3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.

(c) If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." (Code Civ. Proc., § 2033.220.)

III. CONCLUSION

Accordingly, Plaintiff's motion

to compel further responses to request for production of documents, set one, is GRANTED. Defendant is ordered to serve further, verified, responses to all requests that are in the format required by statute.

Plaintiff's motion to compel further responses to requests for admission, set one, is GRANTED. Defendant is ordered to serve further, verified responses to all requests in the format required by statute.

Responses

to both items of discovery shall be served on Plaintiff within 30 days.